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AMERICAN ARBITRATION ASSOCIATION

Technijian, Inc., a California corporation, Claimant, v. Vintage Design, LLC, a Delaware limited liability company, and DOES 1-20, Respondent.	**AAA CASE NO.** **CLAIMANT TECHNIJIAN, INC.'S DEMAND FOR ARBITRATION AND STATEMENT OF CLAIMS**

Claimant TECHNIJIAN, INC. ("Claimant" or "Technijian") hereby brings the following Statement of Claims, based on information and belief, against VINTAGE DESIGN, LLC ("Respondent" or "Vintage Design") for monetary damages, including interest and arbitration costs, and for such other and further relief as the Arbitrator deems just and proper.

THE PARTIES

1. Claimant Technijian is, and at all material times mentioned herein was, a California corporation in good standing with its principal place of business in the County of Orange, State of California.

2. Respondent Vintage Design is, and all material times mentioned herein was, a Delaware limited liability company, with its principal place of business in Dallas, State of Texas, registered in the State of California with the powers and privileges to conduct business in the County of Orange, State of California.

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3. Technijian is unaware of the true names and capacities of Respondents Does 1-20, and therefore brings claims against these Respondents by such fictitious names. Technijian will amend this Statement of Claims to alleged the true names and capacities of these Respondents when and if ascertained. Technijian alleges on information and belief that at all times relevant to this Statement of Claims, each of the Respondents, including each DOE, was the agent, principle, servant, master, employee, employer, joint-venturer, partner, successor-in-interest, and/or coconspirator of each other Respondent.

JURISDICTION AND VENUE

4. The American Arbitration Association ("AAA") has jurisdiction over this matter and over Respondent pursuant to the Terms and Conditions of a written contract entered into between the Parties entitled Client Monthly Service Agreement ("Service Agreement") that contains an Arbitration provision. Specifically, the Arbitration provision which provides, in pertinent part:

> Any claim, dispute or controversy ("Claim") by either Client or Technijian against the other, or against the employees, agents, parents, subsidiaries, affiliates, beneficiaries, agents or assigns of the other, arising from or relating in any way to this Agreement or to our relationship, including Claims regarding the applicability of this arbitration clause or the validity of the entire Agreement, shall be resolved exclusively and finally by binding arbitration administered by the American Arbitration Association, under its Commercial Arbitration Rules in effect at the time the Claim is filed…All Claims are subject to arbitration, no matter what theory they are based on or what remedy they seek. This includes Claims based on contract, tort (including intentional tort), fraud, agency, Client's or Technijian's negligence, statutory or regulatory provisions, or any other sources of law.
>
> Any action, proceeding, arbitration or mediation relating to or arising from this Agreement must be brought, held, or otherwise occur in the federal judicial district that includes Orange County, California.

5. A true and correct copy of the Service Agreement containing the Arbitration provision in effect at the time this arbitration is commenced is attached hereto as **Exhibit A.**

6. The Agreement was entered into between the parties in Orange County, California, and Claimant provided services to Respondent at their office located in Orange County, California at 25200 Commercentre Dr., Lake Forest, CA 92630.

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GENERAL ALLEGATIONS

7. On or about May 1, 2023, Claimant and Respondent entered into a written Client Monthly Service Agreement ("Agreement") for Claimant to provide ongoing IT technical support services to the Respondent (referred to in Agreement as "Client"). The Agreement contained Terms & Conditions. Erica Garcia, VP of Finance for Vintage Design initialed and executed the Agreement on behalf of Respondent. Ravi Jain, CEO of Technijian, executed the Agreement on behalf of Claimant.

8. The Agreement provinces for a 12-month Under-Contract Period ("Contract Period"). Based on information and belief, Claimant thereon alleges that the Contract Period for Responded runs from May 1st of each year until May 31st of the following year. For each Contract Period, Respondent is charged the same number of hours each month for each of the following tech support: (i) onshore support, (ii) offshore support, and (iii) offshore support after hours.

9. The number of hours are estimated and each month during the Contract Period the Respondent is charged the same number of hours, the estimate, multiplied by a rate per hour, in this case: (i) $125 per hour for onshore support, (ii) $15 per hour for offshore support, and (iii) $30 per hour for after hours offshore support.

10. For subsequent Contract Periods, the Respondent's actual hours for services used are then added up for the current Contract Period, and a new monthly average is determined. That new monthly average applies for next Contract Period, and so on, subject to a minimum hours requirement.

11. Under the terms of the Agreement, Respondent has a right to terminate on 30 days' notice at any time, but is subject to cancellation fee. The current Contract Period is from May 1, 2025 to May 31, 2026.

12. Under the terms of the Agreement, Claimant is entitled to reasonable attorneys' fees and costs for disputes arising under the Agreement.

13. On or about June 23, 2025, Respondent sent a Notice of Termination of the Agreement and requested the termination to be effective July 20, 2025. However, under the terms of the Agreement on invoicing, the effective termination date was July 31, 2025.

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14. Per the explicit terms of the Agreement, if the Respondent terminated the Agreement they were subject to a cancellation fee ("Cancellation Fee"), which states that the Respondent shall be liable to pay Technijian for all services and labor costs owed to Technijian up to and including any outstanding invoices as of the date notice of termination is provided. The Agreement further states that if this Agreement is terminated, any hours that exceeded the previous under contract period average, that were documented through ticketing, will be charged at a rate of $150 per hour and will be assessed as the cancellation fee to the Respondent and due before agreement is terminated. Claimant's ticketing system allowed Respondent to request IT support services from Claimant, and that documented Respondent's requests so that Claimant could address each request in timely manner.

15. Technijian charges clients that are not under contract or only need limited services, $150 per hour for all IT support services provided. Technijian is informed and believes, and thereon alleges, that this is a normal hourly rate that other local technical support service companies charge providing similar services as Claimant.

16. Additionally, on every monthly invoice sent to Respondent, Technijian provided the exact number of hours that were unpaid as of the date of the invoice. The invoices given to Respondent each month also stated that hours not paid are due if the Agreement is cancelled pursuant to the terms of the Agreement. Additionally, Technijian attached the current Agreement terms to every invoice, so that Respondent was able to easily reference and review the Agreement. (See Exhibit A).

17. On or about June 27, 2025, Technijian sent Respondent an invoice for all hours worked and documented through Technijian's ticketing system, but not paid for as of the date of the invoice pursuant to the Cancellation Fee provisions of the Agreement. The Final Invoice was due to be paid on July 27, 2025. Respondent failed to provide payment to Technijian in breach of the Agreement.

18. The Agreement further provides that "Upon any termination of this Agreement, Client shall be liable to pay Technijian for all services and labor costs owed to Technijian up to and including any outstanding invoices as of the date notice of termination is provided."

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Accordingly, Technijian issued Respondent their final invoice on June 27, 2025, which was to be paid on or before July 27, 2025. Termination of the Agreement was effective July 31, 2025.

19. Per the terms of the Agreement, Technijian is entitled to a late fee in the amount of 10% of the total invoice if the invoice is not paid by the due date. Respondent has failed to pay the final invoice.

FIRST CAUSE OF ACTION

BREACH OF WRITTEN CONTRACT

(Against Respondent and DOES 1-25)

20. Claimant Technijian repeats and realleges each allegation contained in the foregoing paragraphs of this Demand For Arbitration Statement of Claims as if set forth in full herein.

21. Claimant and Respondent entered into the valid written Agreement for ongoing IT support services in or around May 2023.

22. The services under the Agreement were to be rendered by Claimant to Respondent in Orange County, California.

23. Technijian performed all services, fulfilled all obligations, and satisfied all of the terms and conditions pursuant to the Agreement.

24. On or about July 27, 2025, Respondent breached the Agreement with Technijian by failing to render the sums it was obligated to pay, which currently total a sum in excess of $200,000.00 plus a late fee of 10% of the total amount due. As a result of Respondent's breach, Technijian has been substantially and proximately harmed and incurred damages in excess of $200,000.00, or an exact amount to be determined according to proof.

25. Demand has been made upon Respondent for the payment of the sum owed, but such requests have been refused, and there is now due and owing the sum to Claimant in an amount exceeding $200,000.00, plus the 10% late fee, and attorneys' fees and costs.

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SECOND CAUSE OF ACTION

OPEN BOOK ACCOUNT

(Against Respondent and DOES 1-25)

26. Claimant Technijian repeats and realleges each allegation contained in the foregoing paragraphs of this Demand For Arbitration Statement of Claims as if set forth in full herein.

27. Technijian claims there was an open book account in which financial transactions between the parties were timely recorded and Respondent owes Claimant money in excess of $200,000.00 on the account.

28. From approximately May 2023 until June 2025, Claimant and Respondent had regular monthly financial transactions with each other for the monthly IT services Claimant rendered to Respondent and Respondent paid Claimant for such rendered services.

29. Technijian, in the regular course of business, kept an electronic account of the debits and credits involved in the financial transactions with Respondent for its rendered IT support services.

30. Respondent owes Technijian money on the account for services rendered but not paid in excess of $200,000.00, or in an amount according to proof.

THIRD CAUSE OF ACTION

ACCOUNT STATED

(Against Respondent and DOES 1-25)

31. Claimant Technijian repeats and realleges each allegation contained in the foregoing paragraphs of this Demand For Arbitration Statement of Claims as if set forth in full herein.

32. Respondent owed Claimant money from previous financial transactions relating to the IT support services rendered by Claimant to Respondent.

33. Claimant and Respondent entered into the Agreement and agreed that money in excess of $200,000.00 is owed and due from Respondent and in the correct amount.

34. By executing the Agreement, Respondent promised to pay all monies owed to

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Claimant, including the Cancellation Fee, in the amount provided to Respondent by Claimant in its June 27, 2025 Final Invoice, without objection.

35. To date, Respondent has failed to pay Claimant any of the amount owed under the account, in an amount exceeding $200,000.00.

FOURTH CAUSE OF ACTION

SERVICES RENDERED

(Against Respondent and DOES 1-25)

36. Claimant Technijian repeats and realleges each allegation contained in the foregoing paragraphs of this Demand For Arbitration Statement of Claims as if set forth in full herein.

37. Respondent hired Claimant to perform IT support services by entering into the Agreement and for the benefit of Respondent.

38. Technijian performed all IT support services requested by Respondent from 2023 to 2025.

39. To date, Respondent has not paid Technijian for all services provided, including the unbilled hours that were documented through Technijian's ticketing system and reflected on Technijian's monthly invoices to Respondent, and to be billed at Technijian's normal rate of $150 per hour.

40. Technijian performed approximately 1,457.50 hours of IT support services that have remain unpaid in the amount of $218,686.50 plus a 10% late fee, totaling $240,555.15.

PRAYER FOR RELIEF

WHEREFORE, Claimant TECHNIJIAN, INC. prays for judgment against Respondents, and each of them, as follows:

1. For compensatory damages in an amount to be proved at trial believed to be in excess of $200,000.00, plus the late fee in the amount of 10% of the total amount awarded;

2. For prejudgment and post judgment interest on all amounts due, as permitted under California law;

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3. For recovery of all costs of suit incurred herein, including reasonable attorney's fees and costs, as provided by the Agreement and applicable law; and

4. For such other and further relief as the Arbitrator may deem just and proper.

Dated: October 23, 2025

CALLAHAN & BLAINE, PC

By: Jenna L. Griffin

Edward Susolik
Jenna L Griffin
Attorneys for Claimant Technijian, Inc.

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PROOF OF SERVICE
(Code Civ. Proc. §§ 1010.6, 1011, 1012, 1013, 1013a, 1013b)

STATE OF CALIFORNIA, COUNTY OF ORANGE

At the time of service, I was over 18 years of age and not a party to this action. I am employed in the County of Orange, State of California. My business address is 3 Hutton Centre Drive, Ninth Floor, Santa Ana, CA 92707.

On October 23, 2025, I served true copies of the following document(s) described as **CLAIMANT TECHNIJIAN, INC.'S DEMAND FOR ARBITRATION AND STATEMENT OF CLAIMS** on the interested parties in this action as follows:

SEE ATTACHED SERVICE LIST

BY E-MAIL OR ELECTRONIC TRANSMISSION: I caused a copy of the document(s) to be sent from e-mail address svaldivia@callahan-law.com to the persons at the e-mail addresses listed in the Service List. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on October 23, 2025, at Santa Ana, California.

Selena Valdivia

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